

24STCV16728 24STCV16728

County: los-angeles

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Case Number: 24STCV16728 Hearing Date: June 25, 2026 Dept: 833

Oceans 11 RV Park LLC, Case No. 24STCV16728

v.

Hearing:

June 25, 2026

Location:

Stanley Mosk Courthouse

Department:

833 City of Los Angeles, et al., Judge: Joseph Lipner

[Tentative] Order on

Motion to Enforce Writ of Mandate and Related Court Orders

INTRODUCTION

Petitioner Oceans 11 RV Park LLC ("Petitioner") moves for an order enforcing the writ of mandate and related court orders issued against the City of Los Angeles ("Respondent" or the "City") in this case. Specifically, Petitioner seeks an order vacating the City's revocation of a certificate of occupancy, ordering the certificate of occupancy reinstated, enjoining enforcement of an order to comply, and imposing a \$1,000 fine on the City. (Motion to Enforce ("Mot.") 20.)

BACKGROUND

Petitioner filed this petition for

writ of mandate alleging that the City “unlawfully obstructed the completion and occupation of a fully approved and built out RV park in violation of the City’s own municipal code.” (Second Amended Petition (“SAP”) ¶ 1.) Petitioner sought to develop the park as a Public Benefit Project under Los Angeles Municipal Code (“LAMC”) section 14.00.A.7. Pursuant to that section, an RV park is permitted in the City’s A, R, and C zones if it meets 12 performance standards. (See Court’s Order dated September 11, 2025, at 1.) The Los Angeles Department of Building and Safety (“LADBS”), the Planning Director, and the City Planning Commission “found that the Project complies with all 12 performance standards set forth in section 14.00.A.7.” (Id. at 4.) However, the City refused to issue the permits following the actions of the City Councilmember for the respective district.

This case proceeded to trial on September 11, 2025, and the court (Mackenzie, J.) granted the petition and held that the City had a clear, ministerial duty under LAMC section 14.00.A.7 to approve the RV Park and issue the permits. The City filed a notice of appeal from the judgment and a return to the writ stating that the City would not comply with the writ because it was stayed on appeal pursuant to Code of Civil Procedure section 916. Petitioner moved for an order lifting the automatic stay of the City’s compliance with the writ pursuant to Code of Civil Procedure section 1110b. On March 3, 2026, the court (Goorvitch, J.) granted Petitioner’s motion and ordered the City to comply with Judge Mackenzie’s order of September 11, 2025, and the corresponding writ of mandate, issued on October 15, 2025. (See Court’s Order dated March 3, 2026, at 8-9.)[1] As relevant to the instant motion, Judge Goorvitch ruled as follows on the City’s contentions that the Project fails to comply with three performance standards:

The City argues that the public interest would be harmed if the court requires issuance of the permits because the Project allegedly fails to comply with three performance standards. Relatedly, the City asserts that the “injuries to the public interest” from lifting the stay outweigh the harms to Petitioner because the City would be “forced” to issue permits when the performance standards in LAMC section 14.00.A.7 are not met. Remarkably, the City makes these arguments despite never once having asserted in this litigation that the Project fails to comply with the 12 performance standards in section 14.00.A.7. Judge Mackenzie has already determined—after full briefing, a complete administrative record, and a contested hearing—that the City acted unlawfully and has a ministerial

duty to issue the permits. At the hearing, the City argued that there is a public interest in enforcing the performance standard. There is also a public interest in the City following the Los Angeles Municipal Code and other applicable laws, and approving public benefit projects.

Nor does the City establish that there is a danger to public safety as a result of these issues. The performance standards at issue are: (1) The setback should be 20.5 feet, but the plan showed a setback of 20 feet, i.e., the setback is off by six inches; (2) The corresponding wall/fence is off by six inches; and (3) The property must have a ten-foot landscaped buffer along the periphery of the property, and there is encroachment by a portion of the RV spaces and a trash enclosure with a dumpster. (Oppo. at 8.) These are not the types of issues that give rise to a public safety concern. Regardless, lifting the stay does not eliminate public safeguards or waive final inspections. It does not authorize occupancy without compliance with the permits, or strip the City of enforcement authority.....[¶¶]

The City retains full authority to enforce its codes, conduct inspections, and withhold or revoke a certificate of occupancy if legally warranted.

(Court's Order dated March 3, 2026, at 6-8, citations omitted and emphasis added.)

On or about March 18, 2026, the City filed a return to the writ stating that it had issued the necessary permits and complied with the writ. (Hinks Decl. Exh. 16.) However, on March 19, 2026, the City issued a "Correction Notice" stating that certain deficiencies needed to be corrected before the work authorized by the permits could be approved. (Id. Exh. 17.) Among other things, the City ordered that Petitioner must "[c]omply with the performance standards located in 14.00.A.7" and "[r]emove everything within the landscape buffer zone that does not belong there including white poles, galvanized steel posts, sheds, electric and plumbing connections, and transformers per page P1 of the approved plans." (Ibid.) Petitioner moved ex parte to enforce the writ. (Id. ¶ 18, Exh. 21-22.) On March 27, 2026, after a hearing, the court (Chalfant, J.) granted the application and ordered the City to follow the approved plans. (Ibid.)

The court stated:

There's been a determination made that the plans are consistent with the performance standards. So at this point, I don't care about the performance standards. We're done with those. Plans. If they build it according to the plans, that's good enough. That's all the City can check for....

(Id. Exh. 21 at 14.)

Following

Judge Chalfant's order, the City conducted a final inspection and, on April 20, 2026, issued the certificate of occupancy ("CofO"). (Silver Decl., ¶¶ 26-32, Exh. C-D; Hinks Decl., ¶ 19, Exh. 23-24.) Petitioner's RV park opened and tenants began moving into the park immediately after Petitioner received the CofO.

(Silver Decl. ¶ 33.) However, on April

23, 2026, the City issued a Notice of Intent to Revoke the CofO (the "Notice"). (Hinks Decl. Exh. 25.) The City stated the following basis for its

action:

LADBS identified non-compliance with Performance Standard

No. 5 of L.A.M.C. Section 14.00 A.7, it states that the property is improved with a ten foot landscaped buffer along the periphery of the property. A site inspection found customer installed recreation vehicle park pedestals (consisting of electrical, water and sewer connections) installed within the landscape buffer. This buffer shall only consist of landscaping and according to sheet P-1 of the plans approved by Department of City Planning and LADBS on supplemental BP No. 24026-10000-00086, there is no reference of equipment being located in that area on sheet P-1. [¶] Upon a careful examination of the approved plan and field conditions, LADBS determined that the Certificate of Occupancy associated with BP Nos. 23020-10000-02232 and 24026-10000- 00086 was issued in error and intends to revoke the associated Certificate of Occupancy.

(Ibid., italics in original.) The Notice did not address sheets P-4 and P-7 of the approved plans, which, as discussed below, appear to show the utility infrastructure in the location where it was built, as confirmed by an LADBS approval stamp. (See Id. ¶ 17, Exh. 19; see also Manalansan Decl. ¶ 9 [acknowledging that "plan sheets P4, P7 ... show utility pedestals in the landscape buffer"]; Vidal Decl. ¶ 5 [same].)

On May 7, 2026, the City revoked the

CofO. (Hinks Decl. ¶ 20, Exh. 26.) The revocation letter was based on the same alleged violation of performance standard No. 5 of LAMC section 14.00 A.7 as stated in the Notice. On May 28, 2026, the City issued an Order to Comply (“OTC”) and alleged other purported violations of the performance standards, as discussed below. (Id. Exh. 27.) The OTC directs Petitioner, by June 25, 2026, to remove the utility infrastructure from the landscape buffer area, remove trash enclosures and associated asphalt paving from the landscape buffer zone, relocate a fence, remove or reduce the height of the Concrete Masonry Unit walls in the front yard setback to 42 inches, close the Project, and obtain a new CofO. (Ibid.) This motion to enforce the writ followed.

LEGAL STANDARD

“The trial court that issues a writ of mandate retains continuing jurisdiction to make any orders necessary for complete enforcement of the writ.” (Los Angeles Internat. Charter High School. v. Los Angeles Unified School Dist. (2012) 209 Cal.App.4th 1348, 1355.) “If the petitioner or the court is dissatisfied with the return, the court may order the respondent to reconsider.” (Ibid.) Code of Civil Procedure section 1097 also “authorizes three methods by which a court may enforce a peremptory writ of mandate: (1) a court may impose a fine not exceeding \$1,000; (2) a court may order the disobedient party to be imprisoned until the writ is obeyed; and (3) a court may make any order necessary and proper to enforce the writ.” (King v. Woods (1983) 144 Cal.App.3d 571, 577-578.)[2]

In addition, every court possesses the power to “compel obedience to its judgments, orders, and process.” (Code Civ. Pro. § 128(a)(4).) “The power to enforce their decrees is necessarily incident to the jurisdiction of courts.” (Branson v. Sharp Healthcare, Inc. (2011) 193 Cal.App.4th 1467, 1476, fn. 4.)

EVIDENTIARY ISSUES

The court grants, in part, the City’s request for judicial notice filed June 12, 2026.

The court does not judicially notice the truth of factual statements made in the subject records. (Herrera v. Deutsche Bank National Trust Co. (2011) 196 Cal.App.4th 1366, 1375

["While courts take judicial notice of public records, they do not take notice of the truth of matters stated therein."].)

DISCUSSION

A.

Has the City Complied with the Writ?

Petitioner contends that the City's "revocation of the CofO is nothing more than an impermissible attempt to relitigate performance standard issues that were conclusively resolved." (Mot. 13.) In other words, Petitioner contends that "[i]ssuing a CofO only to revoke it on a previously adjudicated pretext is a circumvention of the writ." (Mot. 16.) Judge Goorvitch granted relief from the automatic stay and ordered the City to comply with Judge Mackenzie's order of September 11, 2025, and the corresponding writ of mandate, issued on October 15, 2025. (See Court's Order dated March 3, 2026, at 8-9.) Although the City reinstated Permit No. 23020-10000-02232 and issued Supplemental Permit Application No. 24026-10000-00086, that does not resolve the motion. (See Hinks Decl. Exh. 16.) The writ also directed the City to "[a]pprove the Public Benefit Project pursuant to Los Angeles Municipal Code Section 14.00.A.7." (Id. Exh. 11.) In granting the writ, Judge Mackenzie "determined that Petitioner has satisfied the 12 performance standards of LAMC section 14.00.A.7." (Court's Order dated March 3, 2026, at 7.) This court agrees with Petitioner, as well as Judge Chalfant, that the judgment in this case necessarily includes a determination that the Project's plans are consistent with the performance standards of LAMC section 14.00.A.7. (See Hinks Decl. Exh. 21 at 13-14.) If Petitioner built the Project in a manner that conflicts with the plans, the City has the power to revoke the CofO. (See RJN Exh. 3 [LAMC § 91.109.6].) However, if Petitioner built according to the plans, then the City's revocation of the CofO for alleged noncompliance with the performance standards is reasonably viewed as an effort to circumvent the writ and may be enjoined pursuant to Code of Civil Procedure section 1097. Therefore, the court considers the City's asserted reasons for revoking the CofO and issuing the OTC.

1.

Utility Infrastructure in the

Landscape Buffer

The City revoked the CofO on the grounds that the Project, as built, does not comply with performance standard No. 5 in LAMC section 14.00.A.7. (Hinks Decl. Exh. 25-26.) Section 14.00.A.7 states the following performance standard: “The property is improved with a ten foot landscaped buffer along the periphery of the property which is maintained and is equipped with an automatic irrigation system.” The City found that “[a] site inspection found customer installed recreation vehicle park pedestals (consisting of electrical, water and sewer connections) installed within the landscape buffer.” (Ibid.) To support this finding, Allen Manalansan, the City’s Assistant Bureau Chief in the Permit and Engineering Bureau, declares as follows:

The reason for the [Notice of Intent to Revoke Certificate of Occupancy] is that a site inspection, conducted post-permit-issuance to verify compliance with Planning and DBS-approved plan sheets P1-P3, found concrete customer installed utility connection pedestals, consisting of electrical, water and sewer connections (“pedestals”), within the landscaped buffer of the RV Park.... My review of Project plan pages P1 and P3, that were reviewed and approved by Planning and DBS in relation to the Supplemental Building Permit, do not show any pedestals located in the landscaped buffer....

Based on my review of DBS records and resources, DBS Permit and Engineering Bureau did not review or approve Project plan sheets P4, P7, or other plan sheets that show utility pedestals in the landscape buffer, prior to the issuance of the DBS Permits. When a DBS plan check engineer reviews and approves a page of a project’s plan set, the specific plan page is stamped by the plan check engineer. Because the State of California Housing and Community Development Department (“HCD”) has jurisdiction over some portions of the RV Park, DBS would review and approve some but not all plan pages in a set of project plans for an RV Park.... To the extent a mark of DBS approval was somehow added to a complete RV Park plan set, including those plans sheets that show utility pedestals or other electrical components, it was added in error.

(Manalansan Decl. ¶¶ 8-9; see also Vidal Decl. ¶ 5 [“The Planning review and approval for the Project did not include review or approval of any other Project plan sheet, P4, P7, or otherwise, that show customer-installed utility connection pedestals in the

landscaped buffer.”].)

Adam

Burgess, a Principal Inspector in the Inspection Bureau of LADBS, declares that the pedestals were not installed by the Los Angeles Department of Water and Power (“LADWP”). (Burgess Decl. ¶

7.) He further declares:

Each pedestal was a raised concrete square about 4 feet on each side with electrical, water and sewer connections on it for recreational vehicles and trailers. There were about 16-17 pedestals in the area that is supposed to be the landscaped buffer. Attached as Exhibit 5 to the City’s Request for Judicial Notice is a true and correct copy of a photograph I took of the pedestals on March 19, 2026. Based on my observations, the site conditions violate Performance Standard No. 5 of LAMC § 14.00.A.7, which states that “the property is improved with a ten foot landscaped buffer along the periphery of the property.” Based on my observations, the site conditions also violate pages P1 through P3 of the Project plans approved by DBS which show landscaping, not utility pedestals located in the landscaped buffer.

(Id. ¶ 7.) Exhibit 5, which this court reviewed, is a picture of the Project site showing the pedestals at issue. (Id. Exh. 5.)

The

City’s evidence conflicts, in some respects, with the approved plans in the record and with Plaintiff’s declarations.

Specifically, the City’s declarants appear to acknowledge that sheets P-4 and P-7 of the approved plans show the utility infrastructure in the location where it was built. (See Manalansan Decl. ¶ 9 [acknowledging that “plan sheets P4, P7 ... show utility pedestals in the landscape buffer”]; Vidal Decl. ¶ 5 [same].) Sheets P-4 and P-7 include a stamp that states “LADBS Approved” and is dated “3 22 24.”

(Hinks Decl. Exh. 19; see also Administrative Record (“AR”) 779-782.) In addition, Stuart Silver, Petitioner’s owner, declares:

The location of the utility infrastructure has long been reflected in the approved plans, which are attached to the Declaration of Matthew D. Hinks (“Hinks Decl.”) as Exhibit 4 (AR0779). LADBS and City Planning reviewed, approved, and stamped those plans. The heads of those departments subsequently reaffirmed on multiple occasions, including through a formal

Inter-Departmental Memorandum, that the plans comply with all applicable performance standards....

Moreover, the utilities equipment was not even constructed by Oceans 11. It was constructed entirely by the City's Department of Water and Power ("LADWP"), who selected and approved the location of the equipment and charged Oceans 11 for its construction. I provided my counsel with a copy of the electrical plan created and approved by LADWP and other related documents....

In addition, LADBS has long been aware of the approved location of the utility equipment. Sheet P-4 of the City's approved plan set for the Project is the electrical plan, which shows that LADBS approved and stamped the plan in the upper right hand corner. (Hinks Decl., Exh. 19 (LADBS B — LA 3-22-24 APPROVED).) The plans also show that the electrical infrastructure that the City tried to make us remove along the rear property line is exactly where the LADWP constructed it....

The plumbing plan is Sheet P-7. (Hinks Decl., Exh. 19.) The plumbing connections the City is requiring to be removed is also shown along the rear property line exactly where LADWP constructed it. Sheet P-7 contains the same LADBS perforated approval stamp.

(Silver Decl. ¶¶ 14-17.) Silver also declares that the cost and time to remove the utility infrastructure from the buffer area would be prohibitive. (Id. ¶ 13.)

On this record, the court concludes that the utility infrastructure at issue, including the "pedestals," was constructed in compliance with the approved plans. The City's declarants appear to acknowledge that sheets P-4 and P-7 of the approved plans show the utility infrastructure in the location where it was built. (See Manalansan Decl. ¶ 9; Vidal Decl. ¶ 5.) Silver declares that the utility infrastructure is shown in the approved plans.

(Silver Decl. ¶¶ 14-17.) Further, as Petitioner argues, there is an open question of whether the City even has jurisdiction to regulate the placement of utility infrastructure within the park itself. (See Mot. 14-15; Health & Safety Code § 18865.) Indeed, the City concedes that the California Housing and Community

Development ("HCD") "has jurisdiction over some portions of the RV Park," and evidence shows that HDC approved the utility infrastructure on the site. (Manalansan Decl. ¶ 9; Silver Decl. ¶ 20.) Because Judge Mackenzie determined that the approved plans comply with the performance standards of LAMC section 14.00.A.7, the City's revocation of the CofO on the grounds that the utility infrastructure allegedly does not comply with performance standard No. 5 appears to be an effort to circumvent the writ of mandate. Therefore, the court is tentatively inclined to enjoin the OTC to the extent it is based on the City's finding that "[t]he sewer connections, water connections, and electrical pedestals are within the 15 foot rear yard setback and within the 10 foot landscape buffer zone at the south end of the property." (See Hinks Decl. Exh. 27.)

The court has considered the parties' remaining contentions related to the utility infrastructure, including the City's citations to utility equipment exception in LAMC section 12.22.A.2. (Oppo. 16; Reply 6-7.) The court does not believe these arguments change the analysis above. Of course, counsel may further make these arguments at the hearing.

The Court will hear argument about whether the issue of the utility infrastructure should be part of the evidentiary hearing that the Court is setting on other issues. The Court also requests arguments on the effect of deciding the issue of the utility infrastructure in Petitioner's favor. By its terms, the revocation of the CofO appears to be based solely on this asserted violation, rather than the other issues raised in the OTC discussed above. Accordingly, resolving this issue in Petitioner's favor may fully resolve the issue of the CofO. If so, what is the practical effect of the OTC if it is limited only to the trash enclosures and paving and the decorative fence and masonry walls?

2.

Trash Enclosures and Paving

The OTC states that "[t]he trash enclosures at the north and south ends of the property, and asphalt paving at the south end of the property, are within the ten foot landscaped buffer zone" in violation of LAMC section 14.00.A.7(a)(5). (Hinks Decl. Exh. 27.)

Joey Buchanan, Senior Building

Inspector, declares: "The trash enclosures at the north and south ends of the property, and asphalt paving at the south end of the property, are within the 10-foot landscaped buffer zone, in violation of LAMC § 14.00.A.7(a)(5), or performance standard No. 5. The asphalt paving underlies part of the trash enclosure and parking. No asphalt paving at the south end of the property within the 10-foot landscaped buffer zone is shown on P1-P3." (Buchanan Decl. ¶ 11.)

Silver

declares that at an inspection on March 19 "Buchanan also noted on the plans that the trash enclosures were also within the landscape buffer" and "informed me that Oceans 11 had to obtain a new supplemental permit just to remove the trash enclosures from the plans."

(Silver Decl. ¶ 9.) "Otherwise, according to Mr. Buchanan, Oceans 11 would need to obtain a new or further approval from Planning to build the trash enclosures that were already approved on the plans." (Id. ¶ 9.) After Judge Chalfant's order that the parties followed the approved plans, Petitioner "constructed the dumpster enclosures in accordance with the approved plans." (Id. ¶ 27.) Nonetheless, the OTC states that the trash enclosures violate LAMC section 14.00.A.7(a)(5).

The

court finds this evidence to be in conflict.

Also, it appears neither side has provided pictures of the trash enclosures and paving, as constructed, or sufficient other evidence from which the court can determine if the trash enclosures and paving were built according to the approved plans. The court will continue the hearing for additional evidence or an evidentiary hearing related to the trash enclosures and paving.

3.

The Decorative Fence; and the
Concrete Masonry Unit Walls

The OTC states that "[t]he decorative fence that encircles the periphery of the property extends into the required front yard setback at the Northwesterly and Southwesterly corners of the property" in violation of LAMC section 14.00.A.7(a)(3). (Hinks Decl. Exh. 27.) The OTC also states that "[t]he Concrete

Masonry Unit walls at the Northwesterly and Southwesterly corners of the property are within the required front yard setback and exceed three and one-half feet in height" in violation of LAMC section 12.22.C.20(f)(2). (Ibid.)

The

performance standard in LAMC section 14.00.A.7(a)(3) states that "[t]here is a solid, decorative, masonry or wrought iron wall or fence at least eight feet in height, or the maximum height permitted by the zone, whichever is less. The wall or fence encircles the periphery of the property and does not extend into the required front yard setback." (RJN

Exh. 4.) LAMC section 12.22.C.20(f)(2)

states, in relevant part: "In the R Zones, fences, walls, and landscape architectural features of guard railing around depressed ramps, not more than three and one-half feet in height above the natural ground level adjacent to the feature, railing or ramp, may be located and maintained in any required front yard." (RJN Exh. 14.)

Inspector

Buchanan addresses these alleged violations in his declaration. In relevant part, he declares as follows:

The decorative fence that encircles the periphery of the property extends into the required front yard setback at the northwesterly and southwesterly corners of the property. This is in violation of LAMC § 14.00.A.7(a)(3), or performance standard number 3.... This is also not built according to the approved plan sheets P1-P3 For example, P1 shows, near the bottom of the sheet, near the center, an arrow that indicates "8' wrought iron fence-new" pointing towards a dotted line that represents the fence as well as the labeled "Set back line"—so the plan sheet shows the fence lined up with the setback—it does not show the fence encroaching into the front yard setback at the northwesterly and southwesterly corners. However, the inspection of the actual site revealed that the fence is in fact encroaching into the front yard setback in the northwesterly and southwesterly corners, which is different than what is shown on P1.

.....[¶¶]

The concrete masonry unit walls at the northwesterly and southwesterly corners of the property are within the required front yard setback, and exceed three and one-half feet in height. The walls are not built according to the approved plan sheets P1-P3. For example, on P1, the lower

right hand corner (the southwesterly corner) shows a bolded or thickened line that is the concrete masonry unit wall, as indicated by an arrow that says existing "8' concrete block wall", and the lower left hand corner (the northwesterly corner) also shows a bolded or thickened line that indicates a wall. There are two gates shown on P1, each one looking like two cat ears or a cursive "V", one at the southwesterly corner and one on the northwesterly corner, in the driveway on each corner. On P1, the plan sheet shows the wall on the southwesterly corner as stopping at the gate, the same with the wall on the northwesterly corner. However, in reality, site inspection revealed that the wall on each corner extends past the respective gate, and extends parallel and adjacent to the portion of the driveway (in gray) that is outside of the gates, by at least more than 10 feet, almost to the sidewalk, and encroaches into the front yard setback. Although not stated in the OTC, as the citation was inadvertently left off, this is in violation of LAMC § 14.00.A.7(a)(3), or performance standard number 3....

(Buchanan Decl. ¶¶ 9, 12.)

Buchanan also explains why he believes the concrete masonry unit walls violate LAMC section 12.22.C.20(f)(2) and present a safety hazard. (Id. ¶ 12.) He declares that "the portion of the tall wall extending parallel and adjacent to the driveway on each corner presents a safety hazard because, for example, if someone is driving out, the 8 feet height of that portion of the wall can obscure the driver's view such that the driver cannot properly see a pedestrian approaching the driveway." (Id. ¶ 12.)

Petitioner

disagrees with Buchanan's assessment.

(Reply 10.) Silver declares that the decorative fence "as constructed is precisely consistent with the approved plans." (Silver Decl. ¶ 43.) He declares that the approved plans depict the concrete masonry unit walls "exactly where they currently exist." (Id. ¶ 44.) Petitioner's evidence on this issue is fairly conclusory.

The court finds this evidence to be in conflict. Also, it appears neither side has provided pictures of the decorative fence or concrete masonry unit walls, as constructed, or sufficient other evidence from which the court can

determine if these items were built according to the approved plans. The court is concerned about Buchanan's testimony that the concrete masonry unit walls violate LAMC section 12.22.C.20(f)(2) and present a safety hazard.

(Buchanan Decl. ¶¶ 11-12.)

Petitioner does not rebut that evidence in reply. The court will continue the hearing for additional evidence or an evidentiary hearing related to the decorative fence and concrete masonry unit walls.

4.

The Court Orders an Evidentiary Hearing

With respect to the trash enclosures, the decorative fence, and the masonry wall, the court is inclined to hold an evidentiary hearing to resolve the factual disputes outlined above with respect to the City's compliance with the writ and the sufficiency of the return. (See *Los Angeles Internat. Charter High School. v. Los Angeles Unified School Dist.* (2012) 209 Cal.App.4th 1348, 1353 [trial court held hearing on the sufficiency of the agency's return].) To the extent possible, the parties should submit pictures, expert declarations, or other documentary evidence that would assist the court in deciding the issues presented by the motion. If necessary, the court will hold a live evidentiary hearing in which cross-examination is permitted.

B.

Exhaustion and Estoppel

The City contends that "[a]ny issues that Oceans 11 has with the revocation of the C of O and the OTC should not be decided by this Court and is a different lawsuit." (Oppo. 18.) Relatedly, the City contends that Petitioner may appeal the revocation of the CofO and the OTC to the Board of Building and Safety Commissioners ("BBSC"). (RJN Exh. 7, 9; *Los Globos Corp. v. City of Los Angeles* (2017) 17 Cal.App.5th 627, 634-635.) Presently, the issue before the court is the City's compliance with the writ. That issue must be decided in this lawsuit pursuant to Code of Civil Procedure section 1097 and relevant case law. (See *Los Angeles Internat. Charter High School.*, *supra*, 209 Cal.App.4th at 1353-55.) Petitioner does not have an administrative remedy before BBSC to challenge the City's

compliance with the writ.[3]

For similar reasons, the City's equitable estoppel arguments are not persuasive. (Oppo. 16.) Petitioner is not asserting estoppel, but rather is seeking to enforce the writ.

(Reply 8-9.)

C.

The Court Enjoins Enforcement of the OTC Pending
a Final Ruling on this Motion

Petitioner seeks an order vacating the City's revocation of the CofO, ordering the CofO reinstated, enjoining enforcement of the OTC, and imposing a \$1,000 fine on the City.

(Mot. 20.) At this time, the court only considers the request for an injunction against enforcement of the OTC. The OTC directs Petitioner, by June 25, 2026, to remove the utility infrastructure from the landscape buffer area, remove trash enclosures and associated asphalt paving from the landscape buffer zone, relocate a fence, remove or reduce the height of the Concrete Masonry Unit walls in the front yard setback to 42 inches, close the Project, and obtain a new CofO. (Hinks Decl. Exh. 27.) Therefore, if the court does not enjoin enforcement of the OTC, the issue of compliance with the writ may become moot before the court can consider all relevant evidence and issue a final ruling.

Concepts of injunctive relief apply in this context. The purpose of a preliminary injunction is to preserve the status quo pending a decision on the merits. (Major v. Miraverde Homeowners Ass'n. (1992) 7 Cal. App. 4th 618, 623.) In deciding whether or not to grant a preliminary injunction, the court looks to two factors, including "(1) the likelihood that the plaintiff will prevail on the merits, and (2) the relative balance of harms that is likely to result from the granting or denial of interim injunctive relief." (White v. Davis (2003) 30 Cal.4th 528, 553-54.) The factors are interrelated, with a greater showing on one permitting a lesser showing on the other. (Dodge, Warren & Peters Ins. Services, Inc. v. Riley (2003) 105 Cal.App.4th 1414, 1420.) However, the party seeking an injunction must demonstrate at least a reasonable probability of success on the merits. (IT Corp. v. County of Imperial (1983) 35 Cal.3d 63, 73-74.) The party seeking the injunction bears the

burden of demonstrating both a likelihood of success on the merits and the occurrence of irreparable harm. (Savage v. Trammell Crow Co. (1990) 223 Cal.App.3d 1562, 1571.)

For the second factor, the court must consider “the interim harm that the plaintiff would be likely to sustain if the injunction were denied as compared to the harm the defendant would be likely to suffer if the preliminary injunction were issued.” (Smith v. Adventist Health System/West (2010) 182 Cal.App.4th 729, 749.) “Where, as here, the defendants are public agencies and the plaintiff seeks to restrain them in the performance of their duties, public policy considerations also come into play. There is a general rule against enjoining public officers or agencies from performing their duties.... This rule would not preclude a court from enjoining unconstitutional or void acts, but to support a request for such relief the plaintiff must make a significant showing of irreparable injury.” (Tahoe Keys Property Owners’ Assn. v. State Water Resources Control Bd. (1994) 23 Cal.App.4th 1459, 1471.)

Here, for the reasons discussed above, Petitioner have shown some, reasonable probability of proving that the City’s revocation of the CofO and issuance of the OTC are efforts to circumvent the writ and violate the court’s orders in this case. Therefore, the court considers the balance of harms.

For the reasons discussed in Judge Goorvitch’s order dated March 3, 2026, Petitioner has shown that it would suffer irreparable harm if the OTC is not enjoined until this court can make a final ruling on the motion to enforce. (Court’s Order dated March 3, 2026, at 3-6.) Indeed, this court finds that Petitioner has made a “significant showing of irreparable injury.” (Tahoe Keys, supra, 23 Cal.App.4th at 1471.) The City has not shown that it, or the public, would suffer irreparable harm if the OTC is stayed for a short period of time so that this court can decide Petitioner’s motion to enforce. For the most part, the court agrees with Judge Goorvitch that the alleged violations identified by the City, including the alleged encroachment on the buffer zone, “are not the types of issues that give rise to a public safety concern.” (See Court’s Order dated March 3, 2026, at 7.) Also, if there was a public safety concern, the City presumably would have set a more immediate compliance date in the OTC.

As noted above, the court is concerned about Buchanan's testimony that the concrete masonry unit walls violate LAMC section 12.22.C.20(f)(2) and present a safety hazard.

(Buchanan Decl. ¶¶ 11-12.)

Petitioner does not rebut that evidence in reply. Counsel should address this issue at the hearing and argue whether the court may stay the OTC except as to the concrete masonry unit walls.

The court defers a ruling on all remaining enforcement orders, including Petitioner's request for a \$1,000 fine, until after the evidentiary hearing specified above.

D.

The Court Orders the City to Reconsider its Return

The City's most recent return, dated March 1, 2026, states that the City "reinstated Permit No. 23020- 10000-02232" and "issued the Supplemental Permit."

(Hinks Decl. Exh. 16.) However,

the return does not state that the City approved the Public Benefit Project pursuant to Los Angeles Municipal Code Section 14.00.A.7, as required by the writ. (Id. Exh. 11.) In addition, the return does not acknowledge the City's revocation of the CofO and issuance of the OTC, and it does not explain why those actions are consistent with the writ.

Therefore, the court does not grant the City's request to discharge the writ. (See Hinks Decl. Exh.

16.) Instead, for the reasons discussed

above, the court orders the City to reconsider its return in light of the court's views expressed herein and at the hearing on this motion. (See Los Angeles Internat. Charter High School., *supra*, 209 Cal.App.4th at 1355 ["If the petitioner or the court is dissatisfied with the return, the court may order the respondent to reconsider."].)

CONCLUSION

Based on the foregoing, the court orders as follows:

1.

The court enjoins the OTC and the revocation of the CofO to the extent they based on the City's finding that "[t]he sewer connections, water connections, and electrical pedestals are within the 15 foot rear yard setback and within the 10 foot landscape buffer zone at the south end of the property." (See Hinks Decl. Exh. 27.) The OTC and the revocation of the CofO are not consistent with the preemptory writ in this respect.

2.

The court orders an evidentiary hearing on Petitioner's motion to enforce with respect to the other issues raised in the OTC (concerning the trash enclosure and paving, decorative fence, and masonry walls) as well as the sufficiency of the City's return. The hearing will be for a date to be discussed with the parties. The court authorizes the parties to submit additional evidence, including pictures of the Project as constructed. The court also authorizes live witness testimony and cross-examination.

3.

Except as noted in paragraph 4 below, the court preliminarily enjoins the City's enforcement of the OTC in its entirety until the court issues a final ruling on Petitioner's motion to enforce and the sufficiency of the City's return.

4.

At the hearing, counsel should address Buchanan's testimony that the concrete masonry unit walls violate LAMC section 12.22.C.20(f)(2) and present a safety hazard. (Buchanan Decl. ¶¶ 11-12.) Counsel should argue whether the court should stay the OTC except as to the order related to the concrete masonry unit walls. Subject to oral argument, the court will not stay enforcement of the portions of the OTC pertaining to the concrete masonry unit walls.

5.

The court orders the City to reconsider its return in light of this court's ruling and to file a new return within 10 days of this ruling.

IT IS SO ORDERED.

Dated: June 25,
2026

Joseph
Lipner

Superior
Court Judge

[1] This court incorporates by reference Judge Mackenzie's order of September 11, 2025, and Judge Goorvitch's order of March 3, 2026.

[2] Section 1097 provides in full: "If a peremptory mandate has been issued and directed to an inferior tribunal, corporation, board, or person, and it appears to the court that a member of the tribunal, corporation, or board, or the person upon whom the writ has been personally served, has, without just excuse, refused or neglected to obey the writ, the court may, upon motion, impose a fine not exceeding one thousand dollars. In case of persistence in a refusal of obedience, the court may order the party to be imprisoned until the writ is obeyed, and may make any orders necessary and proper for the complete enforcement of the writ."

[3] Because it is not necessary to this court's decision, the court states no opinion about whether the revocation of a CofO or the City's issuance of the OTC may be appealed to BBSC. However, as a practical matter, the court states that Petitioner should consider all its remedies, including an appeal to BBSC, in the event this court ultimately determines that the City complied with the writ (in whole or in part).